

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CARRIE COLLINS,

Index No.

Plaintiff,

Plaintiff designates

Bronx County as the place of trial

-against-

The basis of the venue is where the
injury occurred

CITY OF NEW YORK, LUIS ANGELES, CHENG
WANG, STEVEN COLON, JOSE ROSA, OLIVER
CASTILLO and JOHN or JANE DOE 1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
July 2, 2020

SIM & DEPAOLA, LLP

/s/ Samuel C. DePaola

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff(s)

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TO:

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CITY OF NEW YORK
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New York, New York 10038

LIEUTENANT CHENG WANG OF POLICE SERVICE AREA 3,
TAX ID #943939
25 Central Ave,
Brooklyn, NY 11206

P.O. STEVEN COLON OF NARCB BX
SHIELD #6832, TAX ID #940993
One Police Plaza, 11th Floor
New York, New York 10038

P.O. JOSE ROSA OF NARCB BX
SHIELD #3324, TAX ID #942474
One Police Plaza, 11th Floor
New York, New York 10038

P.O. OLIVER CASTILLO OF 48TH PRECINCT
SHIELD # 4106, TAX ID #946838
450 Cross Bronx Expressway
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CARRIE COLLINS,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, LUIS ANGELES, CHENG
WANG, STEVEN COLON, JOSE ROSA, OLIVER
CASTILLO and JOHN or JANE DOE 1-10,

Defendants.
-----X

Plaintiff, **MS. CARRIE COLLINS**, by her attorneys, **SIM & DEPAOLA, LLP**, for her
complaint against the above Defendants, alleges as follows:

1. Plaintiff's claims arise from an April 28, 2018 incident, in which defendants, acting under color of state law, unlawfully arrested and detained plaintiff against her will. Plaintiff was subsequently prosecuted and charged with Criminal Possession of a Weapon and other related crimes. As a result, plaintiff was deprived of her liberty and suffered physical injuries.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief, as the Court may deem just and proper

PARTIES

3. Plaintiff, Ms. Carrie Collins ("Ms. Collins"), each is an African-American female, who resides in Bronx County, State of New York.
4. The Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

7. Defendant Police Officer Luis Angeles (“Angeles”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Angeles was, at the time relevant herein, a Police Officer under Shield No. 168, Tax Reg. No. 932260 in the Narcotics Bronx, located at One Police Plaza, 11th Floor, New York, New York, 10038. Defendant Angeles is sued in his individual and official capacities.

8. Defendant Lieutenant Cheng Wang (“Wang”) was, at all times here relevant, a Lieutenant employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Wang was, at the time relevant herein, a Lieutenant under Tax Reg. No. 943939 in the PSA 3, located at 25 Central Ave, Brooklyn, NY 11206. Defendant Wang is being sued in his individual and official capacities.

9. Defendant Police Officer Steven Colon (“Colon”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Colon was, at the time relevant herein, a Police Officer under Shield No. 6832, Tax Reg. No. 940993 in the Narcotics Bronx, located at One

Police Plaza, 11th Floor, New York, New York, 10038. Defendant Colon is being sued in his individual and official capacities.

10. Defendant Police Officer Jose Rosa (“Rosa”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Rosa was, at the time relevant herein, a Police Officer under Shield No. 3324, Tax Reg. No. 942474 in the Narcotics Bronx, One Police Plaza, 11th Floor, New York, New York, 10038. Defendant Rosa is being sued in his individual and official capacities.

11. Defendant Police Officer Oliver Castillo (“Castillo”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Castillo was, at the time relevant herein, a Police Officer under Shield No. 4106, Tax Reg. No. 946838 in the 48th Precinct, located at 450 Cross Bronx Expy, Bronx, NY 10457. Defendant Castillo is being sued in his individual and official capacities.

12. At all times relevant Defendants John or Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1-10, but such knowledge is believed to in possession of the defendants.

13. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1-10 are being sued in their individual and official capacities.

14. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

15. Within 90 days of accrual dates for these claims, Plaintiff served written notice of her claims with the New York City Comptroller's Office.

16. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

17. Plaintiff has complied with municipal defendant's request for oral examinations or such requests have not been timely made, pursuant to Section 50-h of the New York General Municipal Law.

18. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

19. On April 28, 2018, at approximately 6:00 a.m., plaintiff was lawfully inside of 2111 Southern Blvd, County of Bronx, State of New York.

20. On said date, time and location, plaintiff was asleep in a bedroom.

21. After plaintiff went to sleep the night before, separately arrested and charged individuals, Christopher Collins and his girlfriend, entered said premises and went to sleep in the living room.

22. On said date, time and location, defendants, including Angeles, Wang, Colon, Rosa and Castillo, illegally broke the door and entered said location without a valid search warrant or other legal reason to enter said private property, or if defendants did possess a judicially authorized search warrant, said warrant was procured unlawfully, as being predicated upon fabricated

information, observations and evidence and/or upon information or allegations from an incredible, unreliable and interested source, *e.g.*, a paid confidential informant.

23. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, proceeded to enter plaintiff's bedroom, where defendants violently grabbed plaintiff and yanked her from her the bed.

24. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, then violently contorted plaintiff's body, arms and wrists, before affixing metal handcuffs to her wrists in an excessively tight fashion, which caused plaintiff to suffer substantial physical pain, bruises and swelling to her arms, wrists and hands.

25. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, then told Christopher Collins that- "If you admit to everything, that it's yours, your family will be good!"

26. Christopher told defendants that everything was his and that no one else in the subject premises had any knowledge of the contraband, because the closet allegedly contained the illicit items was only used by him and that he only just placed the alleged contraband there the night prior, after plaintiff had already gone to sleep.

27. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, then threatened to arrest and send everyone else to prison, unless Christopher Collins complied with defendants' additional demands to provide them with information or evidence related to more serious criminal activity and criminal suspects.

28. Christopher Collins was unable to comply to with defendants' coercive and unlawful demands, despite being threatened with the arrest of plaintiff and other innocent individuals.

29. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, then retaliated against Christopher Collins for his inability to meet defendants' demands by following through with

their threats to arrest plaintiff and the others present, despite defendants being fully aware that plaintiff has committed no crime and that they did not possess probable cause to arrest or initiate a prosecution against plaintiff.

30. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, the proceeded to fabricate false evidence against plaintiff, namely that defendants observed plaintiff to be in possession of the contraband allegedly recovered from the closet, despite defendants' full knowledge that plaintiff was never in possession of any contraband, that plaintiff did not have access to the closet and that the contraband was clearly in the possession of only Christopher Collins.

31. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, were fully aware that plaintiff was only observed in a closed bedroom, in which no contraband was recovered or observed and also that plaintiff was never observed to be in the same room as any alleged contraband, let alone in close proximity to any.

32. Defendant Angeles was plaintiff's arresting officer, who perjurally signed the criminal complaint against her by falsely alleging that plaintiff exerted dominion and control over the alleged illegal items.

33. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, falsely arrested Plaintiff, claiming she was in criminal possession of marijuana, cocaine and firearms, even though defendants knew such claims to be untrue and complete fabrications.

34. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, suppressed exculpatory evidence, namely that Christopher Collins admitted his exclusive ownership of each illicit item, that plaintiff could not have possessed or even been aware of said illegal items, because she had already gone to sleep prior to the contraband's arrival, that Christopher Collins was defendants'

only true target or suspect, and that defendants were fully aware that Christopher Collins was the exclusive possessor of the contraband and that Christopher Collins had exclusive access to the living room closet, where defendants alleged to have recovered the contraband.

35. Plaintiff was then put in a police vehicle and transported to the 48th precinct, where she was illegally strip-searched, fingerprinted and interrogated.

36. Defendant, including Angeles, Wang, Colon, Rosa and Castillo, never observed plaintiff secret or attempt to secret any contraband within her person.

37. Plaintiff was thereafter arraigned and formally charged with Criminal Possession of a Weapon, Criminal Possession of a Firearm, Criminal Possession of a Controlled Substance in the seventh degree, Criminally Using Drug Paraphernalia and Unlawful Possession of Marijuana.

38. After being arraigned, plaintiff was removed to the Hunts Point Correctional Facility, also known as “the Boat,” where she was subjected to daily strip-searches with attendant cavity inspections, until she eventually released on, or about, May 3, 2018.

39. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely defendants’ procurement of a search warrant by the use of fraud and perjury, their arrest, detainment and prosecution of plaintiff and innocent arrestees for the sole purposes of obtaining leverage over their true target and suspect, Christopher Collins, and also to punish Christopher Collins for his inability to comply with their demands.

40. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, suppressed evidence and engaged in conduct undertaken in bad faith, such as their coercive utilization of plaintiff’s arrest as leverage against Christopher Collins, their one and only true target and suspect.

41. Plaintiff was forced to return to court numerous times to contest the false charges levied against her.

42. At all times relevant hereto, Defendants, including Angeles, Wang, Colon, Rosa and Castillo, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause.

43. At all times relevant hereto, Defendants, including Angeles, Wang, Colon, Rosa and Castillo, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.

44. On September 26, 2019, the criminal proceedings against Ms. Carrie Collins were terminated in her favor, when all adverse charges were unconditionally dismissed and sealed.

45. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, arrested and attempted cause a criminal prosecution to be initiated against Plaintiff, because of their desires to use Plaintiff's arrest and criminal prosecution as leverage to obtain information related to actual crimes, to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

46. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, unjustly and unlawfully targeted plaintiff for arrest and prosecution, due to impermissible considerations, regarding plaintiff's color, race or ethnicity, or defendants' perceptions thereof, as defendants would not have violated plaintiff's civil rights, if she was not an African-American female, member of a protected class and belonging to a racial minority.

47. Defendants, including Angeles, Wang, Colon, Rosa and Castillo, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff by personally conferring with each other and also the owner of the store where plaintiff was actually arrested, regarding the fabrication of the aforementioned non-existent evidence the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

48. Plaintiff asserts that the Defendants, including Angeles, Wang, Colon, Rosa and Castillo, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

49. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

50. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence

and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via incontrovertible evidence, such as video evidence.

51. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

52. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

53. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’—Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

54. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

55. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

56. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of

marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

57. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

58. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

59. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

60. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.

61. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

62. Defendants’ actions, pursuant to Plaintiff’s underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or

deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

63. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

64. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

65. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, Angeles, Wang, Colon, Rosa and Castillo.

66. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

67. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

68. The aforementioned acts of Defendants, including Angeles, Wang, Colon, Rosa and Castillo, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

69. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of her liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

70. The above paragraphs are here incorporated by reference as though fully set forth herein.

71. Defendants subjected plaintiff and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

72. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to her person and property.

73. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.

74. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

75. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

76. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

77. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

78. The above paragraphs are here incorporated by reference as though fully set forth herein.

79. Defendants subjected plaintiff and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

80. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to her person and property.

81. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.

82. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

83. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

85. The above paragraphs are here incorporated by reference as though fully set forth herein.

86. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

87. Plaintiff was conscious of her confinement.

88. Plaintiff did not consent to her confinement.

89. Plaintiff's arrest and false imprisonment was not otherwise privileged.

90. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth herein.

93. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

94. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

95. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

96. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

97. The above paragraphs are here incorporated by reference as though fully set forth herein.

98. At all relevant times, Defendants caused Plaintiff to fear for her physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

99. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without her consent or justification.

100. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

103. The above paragraphs are here incorporated by reference as though fully set forth herein.

104. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

105. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without her consent.

106. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTIONMalicious Prosecution Under
New York State Law

1107. The above paragraphs are here incorporated by reference as though fully set forth herein.
1108. Defendants initiated the prosecution against Plaintiff.
1109. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution could succeed.
1110. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
1111. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
1112. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.
1113. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
1114. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTIONMalicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

1115. The above paragraphs are here incorporated by reference as though fully set forth herein.
1116. Defendants initiated the prosecution against Plaintiff.
1117. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.
1118. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
1119. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

120. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

122. The above paragraphs are here incorporated by reference as though fully set forth herein.

123. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

124. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

125. Defendants intended to inflict substantial harm upon Plaintiff.

126. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

127. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

129. The above paragraphs are here incorporated by reference as though fully set forth herein.

130. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

131. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

132. Defendants intended to inflict substantial harm upon Plaintiff.

133. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

134. Defendants' actions deprived Plaintiff of her constitutional rights to free from illegal searches and seizures and to not be deprived of her liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

135. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

136. The above paragraphs are here incorporated by reference as though fully set forth herein.

137. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

138. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

139. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiff's liberty and freedom of movement.

140. Accordingly, defendants deprived plaintiff of her civil rights, pursuant to Article I, Sections 1, 2, 6 & 9, of the New York State Constitution, as well Article II, Sections 10 & 12, of the New York Civil Rights Law.

141. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

143. The above paragraphs are here incorporated by reference as though fully set forth herein.

144. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

145. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

146. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiff's liberty and freedom of movement.

147. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

148. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

149. The above paragraphs are here incorporated by reference as though fully set forth herein.

150. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

151. Accordingly, defendants violated plaintiff's rights, pursuant to the Administrative Code of the City of New York, Section 14-151

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

154. The above paragraphs are here incorporated by reference as though fully set forth herein.

155. Plaintiff, as an African-American female, identifies as a racial minority and belongs to a protected class.

156. Defendants discriminated against Plaintiff on the basis of her race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

157. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

158. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of her Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

159. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

160. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

161. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

162. Accordingly, defendants violated plaintiff's rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and

Section 296, Paragraph 13, of the New York Human Rights Law.

163. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

164. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

165. The above paragraphs are here incorporated by reference as though fully set forth herein.

166. Plaintiff, as an African-American female, identifies as a racial minority and belongs to a protected class.

167. Defendants discriminated against Plaintiff on the basis of her race, color or ethnicity

168. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

169. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of her Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

170. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

171. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

172. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

173. Accordingly, defendants violated plaintiff's rights, under the Fourteenth Amendment.

174. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

175. The above paragraphs are here incorporated by reference as though fully set forth herein.

176. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of her rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of her liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

177. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

178. As a result, Plaintiff sustained injuries to her person, was deprived of her liberty or was deprived of rights or privileges of citizens of the United States.

179. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of her civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

180. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

181. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

182. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

183. The above paragraphs are here incorporated by reference as though fully set forth herein.

184. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

185. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

186. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

187. The above paragraphs are here incorporated by reference as though fully set forth herein.

188. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

189. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

190. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

191. The above paragraphs are here incorporated by reference as though fully set forth.

192. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

193. Defendant City breached those duties of care.

194. Defendant City placed defendants in a position where they could inflict foreseeable harm.

195. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

196. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

197. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

198. The above paragraphs are here incorporated by reference as though fully set forth.

199. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

200. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

201. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate

indifference toward the rights of those who may come into contact with defendant City's employees.

202. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

203. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

204. Defendant City's conduct caused plaintiff to be deprived of her civil rights, as guaranteed by the Constitution of the United States, via the Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

205. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- v) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
July 2, 2020

SIM & DEPAOLA, LLP

/s/ Samuel C. DePaola

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

4240 Bell Blvd - Suite 201

Bayside, New York 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
July 2, 2020

/s/ Samuel C. DePaola
SAMUEL C. DEPAOLA, ESQ.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CARRIE COLLINS,

Plaintiff,

-against-

CITY OF NEW YORK, LUIS ANGELES, CHENG WANG, STEVEN COLON, JOSE ROSA,
OLIVER CASTILLO and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for